

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                   |                                     |                           |                                                                                                                                                                                                                       |
|---------------------------------------------------|-------------------------------------|---------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Investigator:<br>Judith Le                        | Team:<br>Squad #12                  | CCRB Case #:<br>201702421 | <input type="checkbox"/> Force <input checked="" type="checkbox"/> Discourt. <input type="checkbox"/> U.S.<br><input checked="" type="checkbox"/> Abuse <input type="checkbox"/> O.L. <input type="checkbox"/> Injury |
| Incident Date(s)<br>Friday, 03/24/2017 10:16 PM   | Location of Incident:<br>§ 87(2)(b) | 18 Mo. SOL<br>9/24/2018   | Precinct:<br>83                                                                                                                                                                                                       |
| Date/Time CV Reported<br>Fri, 03/24/2017 10:30 PM | CV Reported At:<br>IAB              | How CV Reported:<br>Phone | Date/Time Received at CCRB<br>Wed, 03/29/2017 11:05 AM                                                                                                                                                                |

| Complainant/Victim | Type | Home Address |
|--------------------|------|--------------|
|                    |      |              |
|                    |      |              |
|                    |      |              |
|                    |      |              |
|                    |      |              |

| Witness(es) | Home Address |
|-------------|--------------|
|             |              |

| Subject Officer(s)     | Shield | TaxID  | Command |
|------------------------|--------|--------|---------|
| 1. LT David Poggioli   | 00000  | 939236 | 083 PCT |
| 2. POM Alexander Lopez | 20467  | 951935 | 083 PCT |
| 3. POM Andrew Logatto  | 14334  | 950765 | 083 PCT |
| 4. An officer          |        |        | 083 PCT |

| Witness Officer(s)      | Shield No | Tax No | Cmd Name |
|-------------------------|-----------|--------|----------|
| 1. POM Vincent Demarino | 04585     | 953812 | 083 PCT  |
| 2. POM John Sullivan    | 06544     | 949703 | 083 PCT  |

| Officer(s)              | Allegation                                               | Investigator Recommendation |
|-------------------------|----------------------------------------------------------|-----------------------------|
| A . POM Alexander Lopez | Abuse: Police Officer Alexander Lopez stopped § 87(2)(b) | A . Unsubstantiated         |
| B . POM Andrew Logatto  | Abuse: Police Officer Andrew Logatto stopped § 87(2)(b)  | B . Unsubstantiated         |
| C . POM Alexander Lopez | Abuse: Police Officer Alexander Lopez stopped § 87(2)(b) | C . Substantiated           |
| D . POM Alexander Lopez | Abuse: Police Officer Alexander Lopez stopped § 87(2)(b) | D . Substantiated           |
| E . POM Alexander Lopez | Abuse: Police Officer Alexander Lopez stopped § 87(2)(b) | E . Substantiated           |
| F . POM Alexander Lopez | Abuse: Police Officer Alexander Lopez stopped § 87(2)(b) | F . Substantiated           |
| G . POM Andrew Logatto  | Abuse: Police Officer Andrew Logatto stopped § 87(2)(b)  | G . Substantiated           |
| H . POM Andrew Logatto  | Abuse: Police Officer Andrew Logatto stopped § 87(2)(b)  | H . Substantiated           |
| I . POM Andrew Logatto  | Abuse: Police Officer Andrew Logatto stopped § 87(2)(b)  | I . Substantiated           |
| J . POM Andrew Logatto  | Abuse: Police Officer Andrew Logatto stopped § 87(2)(b)  | J . Substantiated           |

| Officer(s)              | Allegation                                                                     | Investigator Recommendation |
|-------------------------|--------------------------------------------------------------------------------|-----------------------------|
| K . LT David Poggioli   | Abuse: Lieutenant David Poggioli stopped § 87(2)(b)                            | K . Unsubstantiated         |
| L . LT David Poggioli   | Abuse: Lieutenant David Poggioli stopped § 87(2)(b)                            | L . Unsubstantiated         |
| M . LT David Poggioli   | Abuse: Lieutenant David Poggioli stopped § 87(2)(b)                            | M . Unsubstantiated         |
| N . LT David Poggioli   | Abuse: Lieutenant David Poggioli stopped § 87(2)(b)                            | N . Unsubstantiated         |
| O . LT David Poggioli   | Abuse: Lieutenant David Poggioli stopped § 87(2)(b)                            | O . Unsubstantiated         |
| P . LT David Poggioli   | Abuse: Lieutenant David Poggioli frisked § 87(2)(b)                            | P . Substantiated           |
| Q . LT David Poggioli   | Abuse: Lieutenant David Poggioli frisked § 87(2)(b)                            | Q . Substantiated           |
| R . LT David Poggioli   | Abuse: Lieutenant David Poggioli frisked § 87(2)(b)                            | R . Substantiated           |
| S . LT David Poggioli   | Abuse: Lieutenant David Poggioli frisked § 87(2)(b)                            | S . Substantiated           |
| T . LT David Poggioli   | Abuse: Lieutenant David Poggioli frisked § 87(2)(b)                            | T . Substantiated           |
| U . POM Alexander Lopez | Abuse: Police Officer Alexander Lopez searched § 87(2)(b)                      | U . Unsubstantiated         |
| V . POM Alexander Lopez | Abuse: Police Officer Alexander Lopez searched § 87(2)(b)                      | V . Unsubstantiated         |
| W . POM Andrew Logatto  | Abuse: Police Officer Andrew Logatto searched § 87(2)(b)                       | W . Unsubstantiated         |
| X . An officer          | Abuse: An officer searched § 87(2)(b)                                          | X . Officer(s) Unidentified |
| Y . An officer          | Abuse: An officer searched § 87(2)(b)                                          | Y . Officer(s) Unidentified |
| Z . LT David Poggioli   | Abuse: Lieutenant David Poggioli searched § 87(2)(b)                           | Z . Unsubstantiated         |
| AA. LT David Poggioli   | Abuse: Lieutenant David Poggioli searched § 87(2)(b)                           | AA. Unsubstantiated         |
| AB. LT David Poggioli   | Abuse: Lieutenant David Poggioli searched § 87(2)(b)                           | AB. Unsubstantiated         |
| AC. LT David Poggioli   | Abuse: Lieutenant David Poggioli searched § 87(2)(b)                           | AC. Unsubstantiated         |
| AD. LT David Poggioli   | Abuse: Lieutenant David Poggioli searched § 87(2)(b)                           | AD. Unsubstantiated         |
| AE. POM Alexander Lopez | Discourtesy: Police Officer Alexander Lopez spoke discourteously to § 87(2)(b) | AE. Unsubstantiated         |
| AF. POM Alexander Lopez | Discourtesy: Police Officer Alexander Lopez spoke discourteously to § 87(2)(b) | AF. Unsubstantiated         |

### Case Summary

On March 24, 2017, § 87(2)(b) filed this case with IAB via phone. On March 29, 2017, it was received by CCRB under Original Log § 87(2)(b).

On March 24, 2017 at 10:16 p.m., a woman, who wished to remain anonymous, called 911 and reported a group of males with a gun and drugs at § 87(2)(b) in Brooklyn. At 10:20 p.m., PO Alexander Lopez and PO Andrew Logatto of the 83<sup>rd</sup> Precinct arrived on scene. Shortly thereafter, Lieutenant David Poggioli, PO Vincent DeMarino, and PO Johnson Sullivan of the 83<sup>rd</sup> Precinct also arrived. PO Lopez and PO Logatto stopped § 87(2)(b) (**Allegations A and B: Abuse of Authority - Stop, unsubstantiated**) and § 87(2)(b) (**Allegations C, D, E, F, G, H, I, J: Abuse of Authority - Stop, substantiated**). These stops allegedly took place under Lieutenant Poggioli's supervision (**Allegations K, L, M, N, and O: Abuse of Authority - Stop, unsubstantiated**). Lt. Poggioli then supervised the frisks of § 87(2)(b) and § 87(2)(b) (**Allegations P, Q, R, S, and T: Abuse of Authority - Frisk, substantiated**). Following the frisks, PO Lopez allegedly searched § 87(2)(b) and § 87(2)(b) while PO Logatto allegedly searched § 87(2)(b) (**Allegations U, V, and W: Abuse of Authority – Search (of person), unsubstantiated**). At the same time, one of the officers present allegedly searched § 87(2)(b) and § 87(2)(b) (**Allegations X and Y: Abuse of Authority – Search (of person), officer unidentified**). These alleged searches all took place under Lieutenant Poggioli's supervision (**Allegations Z, 2A, 2B, 2C, and 2D: Abuse of Authority – Search (of person), unsubstantiated**). During this time, PO Lopez allegedly told § 87(2)(b) and § 87(2)(b) to, "Shut the fuck up," (**Allegations 2E and 2F: Discourtesy - Word, unsubstantiated**). The officers did not find any guns. The only drugs recovered were a small bag of marijuana belonging to § 87(2)(b). PO Logatto issued a summons to § 87(2)(b) for § 87(2)(b) and the officers left.

There is no video footage capturing this incident.

§ 87(2)(g)

### Findings and Recommendations

**Allegation A –Abuse of Authority: Police Officer Alexander Lopez stopped** § 87(2)(b)

**Allegation B –Abuse of Authority: Police Officer Andrew Logatto stopped** § 87(2)(b)

**Allegation C –Abuse of Authority: Police Officer Alexander Lopez stopped** § 87(2)(b)

**Allegation D –Abuse of Authority: Police Officer Alexander Lopez stopped** § 87(2)(b)

**Allegation E –Abuse of Authority: Police Officer Alexander Lopez stopped** § 87(2)(b)

**Allegation F –Abuse of Authority: Police Officer Alexander Lopez stopped** § 87(2)(b)

**Allegation G –Abuse of Authority: Police Officer Andrew Logatto stopped** § 87(2)(b)

**Allegation H –Abuse of Authority: Police Officer Andrew Logatto stopped** § 87(2)(b)

**Allegation I –Abuse of Authority: Police Officer Andrew Logatto stopped** § 87(2)(b)

**Allegation J –Abuse of Authority: Police Officer Andrew Logatto stopped** § 87(2)(b)

**Allegation K –Abuse of Authority: Lieutenant David Poggioli stopped** § 87(2)(b)

**Allegation L –Abuse of Authority: Lieutenant David Poggioli stopped** § 87(2)(b)

**Allegation M –Abuse of Authority: Lieutenant David Poggioli stopped** § 87(2)(b)

**Allegation N –Abuse of Authority: Lieutenant David Poggioli stopped** § 87(2)(b)

**Allegation O –Abuse of Authority: Lieutenant David Poggioli stopped** § 87(2)(b)

It is undisputed that a woman, who asked to remain anonymous, called 911 to report a group of men in front of § 87(2)(b). § 87(2)(g).

The 911 call for Event #§ 87(2)(b) (Board Review #1) states at <00:03> Anonymous to 911 Operator: “Yes, I’m calling because I live at § 87(2)(b) and I have a situation here. There are five to seven men in front of my house. They are smoking drugs and their music is too loud. Oh sorry, I made a mistake. I’m so nervous. § 87(2)(b) . . . § 87(2)(b) At <02:38> Anonymous to 911 Operator: “There were like seven in a car and they were doing drugs in front of me. I was looking out the window and they had the gun everything and they had the music. They still have the music, but it’s not loud like before. All the time, they are here one time a week, and they take drugs in front of everybody and no police stop them.” At <03:05> 911 Operator to Anonymous: “Okay, ma’am, you said you saw a gun, a G-U-N?” At <03:09> Anonymous to 911 Operator: “Yes, yes I saw that. It was in the car. I don’t know if the car is still there. And I saw they put something in the garbage. And I don’t want they put in there and somebody gave money to them.” At <03:31> Anonymous to 911 Operator: “It was black [men] and one was like, white, but I don’t know if he was Hispanic or what. There’s only one in the car and the other is in front of the home. There was a blue car. Now the group is in front of my house. . . No the car left. The people, there are like five of them.” At <04:12> 911 Operator to Anonymous: “When did you see the gun? How long ago?” At <04:15> Anonymous to 911 Operator: “It was like 20 minutes ago. I saw it in the car and he passed it to somebody else there. And they passed it, but I don’t know why. I looked out the window, but I don’t want them to see my face . . . I see them give money for something, but I don’t know what it is. One of them is a skinny one. He’s a black, like a black car and has a white headset. He is black and skinny. That’s

the one who I saw put drugs in the garbage.” At <06:14> 911 Operator to Anonymous: “Okay ma'am, and what's your last name?” At <06:15> Anonymous to 911 Operator: “No, I can't give you my name. Never.” At <06:17> 911 Operator to Anonymous: “Okay ma'am, you wish to remain anonymous?” At <06:20> Anonymous to 911 Operator: “Yes” (Board Review #2).

The radio message for Event #§ 87(2)(b) (Board Review #3) states at <05:06> 911 Dispatcher: “10-10 firearm at § 87(2)(b) and § 87(2)(b) Female caller states saw firearm, group of seven males—people—selling at location. No further.” At <05:45> “83 Special Ops.” At <06:04> 911 Dispatcher: “10-4. In regards to this, seven male blacks, one possible male white in a blue vehicle. Five still in front of the location. Female said she saw a firearm 20 minutes in the past.” At <06:29> 83 Special Ops: “Can we get a description of the vehicle and its plates?” At <07:02> 911 Dispatcher: “Hey 83 Special Ops, the callback has gone to voicemail . . . § 87(2)(b) At <09:35> 911 Dispatcher: “83 Housing conditions?” At <09:38> 83 Housing conditions: “Shot on § 87(2)(b) ?” At <09:54> 911 Dispatcher: “Caller states its one per male black skinny wearing headset exchanging money and putting something into the trash. Caller is advising this happened ten minutes in the past.” At <10:26> 83 Special Ops: “Can you do a callback and see what direction he walked off in?” At <10:35> 911 Dispatcher: “Hey, 83 Special Ops, be advised the caller wants to remain anonymous. No callback. 83 Housing Conditions” (Board Review #4).

§ 87(2)(b) (Board Review #5) stated that he was walking up § 87(2)(b) when he saw his friends, § 87(2)(b) and § 87(2)(b) standing in front of a building. § 87(2)(b) did not believe his friends had been there long and joined them. They did not drink, do drugs or pass any object around, and were standing at a distance and talking. After about five to ten minutes, two unmarked cars stopped next to them. PO Lopez and PO Logatto were the main officers speaking, and instructed everyone to stand against the wall. Everyone kept asking what was going on and what they had done. PO Lopez and PO Logatto explained that they had received a complaint that someone had a gun. § 87(2)(b) and his friends did not have any guns. One of his friends told the officers, “Get out of here,” as in, you have got to be kidding me. The officers then got aggressive. They instructed them to turn and put their hands on the gate. Everyone complied since they knew they were not doing anything wrong. § 87(2)(b) s statement was consistent with his original phone statement (Board Review #6).

§ 87(2)(b) (Board Review #7) stated that he was coming from the corner store when he saw his friends hanging out in front of the building, which they generally did, because they knew someone that lived there. He believed he was with his friends § 87(2)(b) § 87(2)(b) brother, § 87(2)(b) § 87(2)(b) § 87(2)(b) and § 87(2)(b) People from the group had been drinking, but the bottle was empty and placed in a trashcan. No one was smoking. After they had been in front of the building for about twenty minutes, two marked police cars came out of nowhere. Four uniformed officers approached them and said, “We’re getting complaints from over there.” § 87(2)(b) asked what the complaint was about. The officers did not reply, but instead told everyone to stand and not move.

In his IAB statement, (Board Review #8-9) § 87(2)(b) stated that he observed officers placing people against a gate and searching them for no reason. During § 87(2)(b) original IAB call, an officer was overheard telling § 87(2)(b) to “not move” and the call was then disconnected.

§ 87(2)(b) later called IAB back, and explained that he was standing with six black males and talking when a marked vehicle with two uniformed officers exited and asked them, “What is going on?” Seconds later, four plainclothes officers in two unmarked cars arrived. § 87(2)(b) said the officers did not have any probable cause to stop them and did not show them a 911 call report when they requested it.

PO Lopez’s memo book (Board Review #10) states that at 10:20 p.m., “5 males stopped for radio run. Male with a gun in front of § 87(2)(b). 250: 1 male § 87(2)(b) § 87(2)(b) (§ 87(2)(b) § 87(2)(b), Height 6’0” tall, Weight: 155, brown hair, blue eyes, slim build) reason for stop given and description read back. 250: 2 male stopped § 87(2)(b) § 87(2)(b) Height 5’7”, Weight 165, brown hair, black eyes, slim build) reason for stop explained and description read back. 250: 3 male stopped § 87(2)(b) § 87(2)(b) height 6’2”, weight 170, black hair, brown eyes, slim build) reason for stop given for stop and description read back. 250: 4 male stopped § 87(2)(b) § 87(2)(b) height 6’6”, weight 160, brown hair, black eyes, slim build) reason for stop explained and description read back. 250: 5 male stopped refused to give info. Male black, height 6’2”, weight 175, black hair, brown eyes, slim build. Reason for stop explained and description read back.”

Stop, question, and frisk reports (Board Review #11) were produced by PO Lopez for five male blacks. Corresponding pedigree information for the individuals was also listed in PO Lopez’s memo book. § 87(2)(b) and § 87(2)(b) are all listed by name, while PO Lopez noted that the fifth male refused to provide his name (Board Review #5). The report states that the factors that led to the stop were: matches a specific suspect description. The narrative states radio run, gun run, female caller saw gun possibly passed off between males.

Summons #§ 87(2)(b) (Board Review #12) was issued by PO Logatto to § 87(2)(b) on March 24, 2017 for § 87(2)(b) at § 87(2)(b) in Brooklyn, § 87(2)(b) (b).

PO Lopez (Board Review #13) stated that he and PO Logatto received a radio run for five black males in front of § 87(2)(b) with a firearm. PO Lopez noted that the incident location frequently received calls like these, but he was unable to provide any specific details. Outside of the description for five black males, PO Lopez could not remember any other details provided, including clothing color, height, or weight. After arriving on scene, PO Lopez and PO Logatto did not conduct any initial surveillance and immediately got out of their vehicle. They conducted a callback, and received the same description from an individual who wanted to remain anonymous. PO Lopez saw five black males standing around dice that were on the ground, which PO Lopez felt was indicative of gambling. PO Lopez did not mention seeing any money exchanged. He did not see any drugs or guns. PO Lopez and PO Logatto decided to stop the males based on the description provided over the radio run. PO Lopez exchanged a few general greetings with the males, who told the officers they were gambling with dice. There was nothing about their behavior that indicated they might have a weapon and none of the actions taken by the males on scene made PO Lopez concerned about his safety. About a minute after, Lieutenant Poggioli and his driver arrived on scene.

PO Logatto (Board Review #14) stated that the § 87(2)(b) reported seeing a male with a firearm and a group of four or five males exchanging money with each other. The only specific description provided was for one male black, skinny, with a white headset. PO Logatto did not know anything about the § 87(2)(b) and could not recall at what point he learned that the caller wanted to remain anonymous. At the conclusion of his interview, after PO Logatto was re-questioned by his attorney, he said that when he arrived on scene, he did not believe he knew that the caller was anonymous. PO Logatto noted that he was familiar with § 87(2)(b) due to previous calls for narcotics, the sale of narcotics and gambling at that address, which were tied to his general knowledge of the 83rd precinct. PO Logatto and PO Lopez were the first officers to arrive on scene and they independently decided to approach the males. PO Logatto could not remember if he saw any males wearing a white headset. As they got out of their vehicle, PO Logatto saw § 87(2)(b) take something out of his pocket and throw it onto the ground. PO Logatto approached § 87(2)(b) and saw a small, clear plastic bag. He determined based on his training and the marijuana arrests made throughout his career that the bag contained marijuana. PO Logatto saw dice, but not money in anyone's hands or the exchange of money. The males did not ever confirm to PO Logatto that they were gambling. He and PO Lopez then stopped the males because the area was known to be a highly drug prone area with lots of gambling, and in his experience, street narcotics and street gambling could often lead to physical violence.

Lieutenant Poggioli (Board Review #15) noted that § 87(2)(b) was an extremely problematic location and between January 1 and March 24, 2017, nine 911 calls had been made there pertaining to disorderly groups and drug sales. Lieutenant Poggioli could not remember if he had responded to any of those calls, but noted it was his job to be aware of the problematic locations in his command. Lieutenant Poggioli, who was with PO DeMarino and PO Sullivan, arrived almost simultaneously with PO Lopez and PO Logatto. He stated that outside of the five officers present, there were no additional officers that showed up on scene. Lieutenant Poggioli saw five black males fitting the description and § 87(2)(b) had white over-the-ear headphones. Immediately when they got out the car, Lieutenant Poggioli and all the officers saw § 87(2)(b) drop a small bag of marijuana on the ground in front of him. There were dice on the ground which Lieutenant Poggioli felt was indicative of violence because where there were dice, there was someone "posted up there with a few thousand dollars" for gambling. Lieutenant Poggioli said the officers were not acting on an anonymous, isolated incident, but conducting a stop based on a documented location where dice was observed and marijuana was on scene. After reviewing the documents for EVENT #§ 87(2)(b) (Board Review #1), Lieutenant Poggioli confirmed that the § 87(2)(b) asked to remain anonymous, but added that there was a cellphone number listed, so there was a possibility that the officers had tried to call the number back. Shortly thereafter, Lieutenant Poggioli's representatives asked to take a quick break. Upon resuming the interview, Lieutenant Poggioli said he could not remember if he called the anonymous caller back on the phone, but noted that upon responding to the scene he saw dice and drugs. Lieutenant Poggioli was the main supervisor on scene and explained to the males there had been a 911 call about a gun being passed around. The males did not admit to having a gun. He also told the males, "You can't be out here playing dice." The males did not respond. In his initial report of the incident to IAB, Lieutenant Poggioli said that § 87(2)(b) was across the street and on his phone during the initial stop. § 87(2)(b) then crossed the street and "involved himself" in the

situation, but no officer took his phone. Lieutenant Poggioli identified § 87(2)(b) as a neighborhood drug dealer.

PO DeMarino (Board Review #16) stated that when he arrived, PO Lopez and PO Logatto already had seven males stopped at the corner. PO DeMarino had seen the males before hanging out at the corner of § 87(2)(b) and knew that § 87(2)(b) had just been let out on parole. He did not see any dice on the street, and did not hear Lieutenant Poggioli ask them about dice. § 87(2)(b) a known heroine dealer, was standing behind PO Lopez and PO Logatto with an electric guitar over his shoulder. § 87(2)(b) was not stopped with the males and instead was walking and pacing behind the officers trying to intimidate them. Lieutenant Poggioli immediately instructed PO DeMarino to take § 87(2)(b) away from the stop to the other side of the street, for the officers' safety. PO DeMarino went and escorted § 87(2)(b) across the street. § 87(2)(b) continued to yell at PO Lopez and PO Logatto about stopping the males and took out his phone and called 911.

PO Sullivan (Board Review #17) provided a statement consistent with PO DeMarino. Upon arriving he got out and stood in the middle of the street. § 87(2)(b) was screaming across the street with a guitar on his hands, and a group of males was stopped against a wall.

In *People v. De Bour*, 40 NY.2d 210 (1976), the court held that officers needed reasonable suspicion to stop a person (Board Review #18).

In *Fla. v. J.L.*, 529 US 26 (2000), the Supreme Court held that an anonymous tip that a person is carrying a gun, is not, without more, sufficient to justify a police officer's stop of that person (Board Review #19).

In *People v. Gordon*, 831 NYS.2d 834 (2006), a caller reported and described a shooting suspect, did not give a call-back number, did not state the basis of the information, and made the call from a commercial establishment. The court determined that the caller was anonymous, and found that an anonymous tip does not give officers reasonable suspicion to conduct a stop (Board Review #20).

In *New York v. Hawkins*, 781 NYS.2d 627 (2003), the court held that the presence of dice, standing alone, without evidence of wagering, was insufficient to establishing probable cause for the crime of loitering for the purpose of gambling (Board Review #21).

§ 87(2)(g)  
It is therefore recommended that **Allegations A and B** be *unsubstantiated*.



§ 87(2)(g)

It is therefore recommended that **Allegations C, D, E, F, G, H, I, and J** be *substantiated*.

In his statement, Lieutenant Poggioli asserted that all the officers arrived simultaneously, and it was his decision to initiate the stop. In their statements, § 87(2)(b) and § 87(2)(b) also stated that they saw two police vehicles arrive at the same time. § 87(2)(g) PO Lopez, PO Logatto, PO DeMarino, PO Sullivan, and § 87(2)(b) all stated PO Lopez and PO Logatto were the first officers to arrive on scene. PO Lopez and PO Logatto acknowledged that they made the decision to conduct the stop. PO DeMarino and PO Sullivan also noted that upon arriving with Lieutenant Poggioli, the stop was already in progress. § 87(2)(g)

It is therefore recommended that **Allegations K, L, M, N and O** be *unsubstantiated*.

**Allegation P –Abuse of Authority: Lieutenant David Poggioli frisked § 87(2)(b)**  
**Allegation Q –Abuse of Authority: Lieutenant David Poggioli frisked § 87(2)(b)**  
**Allegation R –Abuse of Authority: Lieutenant David Poggioli frisked § 87(2)(b)**  
**Allegation S –Abuse of Authority: Lieutenant David Poggioli frisked § 87(2)(b)**  
**Allegation T –Abuse of Authority: Lieutenant David Poggioli frisked § 87(2)(b)**  
**Allegation U –Abuse of Authority: Police Officer Alexander Lopez searched § 87(2)(b)**  
**Allegation V –Abuse of Authority: Police Officer Alexander Lopez searched § 87(2)(b)**  
**Allegation W –Abuse of Authority: Police Officer Andrew Logatto searched § 87(2)(b)**  
**Allegation X –Abuse of Authority: An officer searched § 87(2)(b)**  
**Allegation Y –Abuse of Authority: An officer searched § 87(2)(b)**  
**Allegation Z –Abuse of Authority: Lieutenant David Poggioli searched § 87(2)(b)**  
**Allegation 2A –Abuse of Authority: Lieutenant David Poggioli searched § 87(2)(b)**  
**Allegation 2B –Abuse of Authority: Lieutenant David Poggioli searched § 87(2)(b)**  
**Allegation 2C –Abuse of Authority: Lieutenant David Poggioli searched § 87(2)(b)**  
**Allegation 2D –Abuse of Authority: Lieutenant David Poggioli searched § 87(2)(b)**

It is undisputed that after conducting the stop, officers frisked § 87(2)(b) and § 87(2)(b) § 87(2)(g)

§ 87(2)(b) (Board Review #5) stated that he was standing farthest to the left. § 87(2)(b) had his wallet, a few dollars and his keys in his jean pockets. He did not have a gun on him or see any of his friends with a gun. § 87(2)(b) said PO Lopez, who he described as a heavyset Spanish male in his mid-30s, approximately 5’6” or 5’7” tall with black hair, searched his waistband, and grabbed and shook his belt. PO Lopez lifted up § 87(2)(b)’s pants to see if there was anything by his shoes. He also reached between his legs around his crotch. PO Lopez then stuck his hands in § 87(2)(b)’s pockets. When PO Lopez was done searching § 87(2)(b) PO Lopez moved to the person standing next to him, § 87(2)(b) and searched him in the same areas. § 87(2)(b) noted that the officers did not find any weapons on anyone. During his brief phone statement (Board Review #6), § 87(2)(b) did not provide any details on the frisk, but was consistent in his assertion that he had been searched.

§ 87(2)(b) (Board Review #7) stated he was frisked by PO Lopez, who patted him up and down and grabbed his groin. He described PO Lopez as a heavyset Hispanic officer in uniform. § 87(2)(b) had keys, ID, and money in his pockets. PO Lopez removed the contents of his pockets and then searched everyone else. § 87(2)(b) later said he believed that four uniformed officers each searched two people. After they were searched, the officers asked § 87(2)(b) for his ID. A black unmarked car with plainclothes officers, who identified themselves as part guns and narcotics, then appeared, and § 87(2)(b) and everyone were searched again by the plainclothes officers who told them there had been a shooting over the weekend. The officers did not find anything.

§ 87(2)(b) stated to IAB (Board Review #8-9) that officers had them place their hands on the wall and they were frisked. The officers ran their hands through everyone's pockets and personal property.

PO Lopez (Board Review #13), a 210-pound, 5'9" tall, Hispanic male with black hair, stated that he and PO Logatto frisked the males for their safety. In the Stop, Frisk, and Question reports (Board Review #11), PO Lopez listed the basis for the frisk as "violent crime." To PO Lopez's knowledge, prior to frisking the individuals, there was no knowledge that any of them had marijuana and he could not smell any on scene. PO Lopez did not know when PO Logatto first saw the marijuana, but after they frisked and identified the individuals, PO Logatto informed PO Lopez that he was going to write a summons for marijuana. PO Lopez started to frisk the people on the left side and PO Logatto started to frisk the people on the right side. He did not believe that they frisked the same people. § 87(2)(b) and § 87(2)(b) had hard bulges that were making an imprint on their pockets, and he wanted to identify what they were. He could not remember what the bulges looked like, but thought they could be weapons because of the 911 call. PO Lopez frisked their waistband and pocket area. The males asked why they were being frisked and PO Lopez replied that there had been a call. The bulges were not weapons. PO Lopez said that none of the officers searched the males. PO Lopez, specifically, did not search the males or reach into their pockets.

In the five Stop, Question, and Frisk reports (Board Review #11) mentioned above, PO Lopez noted that each male was frisked, but next to the question of person searched, PO Lopez stated, "No."

PO Logatto (Board Review #14) said that the males were already standing against a wall and the officers instructed them to turn around. PO Logatto noted that while there were no actions taken by the males that would have caused the officers to feel concerned about their safety, there was always a concern for safety whenever a call came over as a gun run. PO Logatto was mainly focused on § 87(2)(b) who he had seen throw the marijuana. PO Logatto believed he only frisked § 87(2)(b) who was standing on the far right. PO Logatto did not know who frisked the other defendants. He did see not bulges on anyone else. PO Logatto said he did not search § 87(2)(b) and did not believe the other officers searched anyone. After he was done frisking § 87(2)(b) PO Logatto wrote him a C-Summons for § 87(2)(b)

Lieutenant Poggioli (Board Review #15) said the males were wearing bulky clothing, and he could not see any bulges through their clothes. Outside of appearing nervous, there was nothing in the males' behavior or actions that indicated they might have a gun. However, Lieutenant Poggioli did see dice and the presence of dice was indicative of violence as dice games often resulted in individuals fighting over money. Lieutenant Poggioli did not frisk anyone, and other officers frisked the males, but they all did so under his supervision as he was the senior officer present. As the senior officer, Lieutenant Poggioli explained to the males that there had been a 911 call about a gun being passed around and the officers were going to make sure that none of them had a firearm. The officers then "did what they had to do" and frisked the males. Lieutenant Poggioli noted that the officers did not find any weapons or additional drugs—beyond the marijuana dropped on the ground. After the officers were done interacting with the males, Lieutenant Poggioli saw § 87(2)(b) come around the corner. Lieutenant Poggioli knew § 87(2)(b)

§ 87(2)(b) as a neighborhood drug dealer, who called 911 when he saw police responding to 911 calls or enforcement actions. Lieutenant Poggioli stated that on that day, § 87(2)(b) called 911 and fabricated a story. The officers left the scene and Lieutenant Poggioli got on the phone with IAB to address § 87(2)(b) allegations.

PO DeMarino (Board Review #16) stated he did not see any of the males throw marijuana on the ground, show a gun, or have any bulges. From across the street, he saw PO Logatto and PO Lopez frisk the males.

During this time, PO Sullivan was standing in the middle of the street and Lieutenant Poggioli was supervising the scene. He did not see the males get searched. After the males were frisked, one of them received a summons and the officers left.

PO Sullivan (Board Review #17) did not see any firearms or bulges on the males, or dice on the street. PO Sullivan stated there was nothing in the males' behavior that made him fear for his safety on scene. PO Sullivan's main role was to make sure the officers were safe. PO Lopez and PO Logatto spoke to the males, but he could not hear what was said. He did not see the officers frisk the males. For some portion of the stop he stood in the middle of the street, and for some period he stood in the middle of the street with § 87(2)(b) and PO DeMarino. PO Sullivan only saw the officers talk to the males, and did not see anyone search them. After the officers said everything was "good," PO Sullivan then left.

P.G. 212-11 states that if an officer develops a reasonable suspicion that a person is armed and dangerous, the officer may frisk the person for a deadly weapon or instrument. An officer may conduct a search to remove an object that the member felt during a frisk and reasonably suspects is a weapon or dangerous instrument (Board Review #22).

In *Fla. v. J.L.*, 529 US 26 (2000), the Supreme Court held that an anonymous tip that a person is carrying a gun, is not, without more, sufficient to justify a police officer's frisk of that person. An officer, for the protection of himself and others, may conduct a carefully limited frisk and search for weapons in the outer clothing of persons engaged in unusual conduct where the officer reasonably concludes in light of his experience that the persons in question may be armed and presently dangerous (Board Review #19).

In *Knowles v. Iowa*, 525 U.S. 113 (1998), the Supreme Court held that police officers may frisk an individual who has been issued a summons, but only if the police officer reasonably suspects that the suspect is armed and dangerous. The issuance of a summons alone does not justify a frisk (Board Review #29).

In *People v. Gonzalez*, 743 N.Y.S.2d 112 (2002), the Court held that a frisk is permissible only if the police possess a particularized reasonable suspicion that the suspect is armed, and may be dangerous (Board Review #41).

In *People v. Reid*, 24 N.Y.3d 615 (2014), the Court held that a search must be incident to an actual arrest, or based on probable cause, not just to obtain probable cause that might have led to an arrest, but did not (Board Review #40).

and § 87(2)(b) § 87(2)(g)

It is therefore

§ 87(2)(g) [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]. It is

§ 87(2)(g)

**Allegation 2E –Discourtesy: Police Officer Alexander Lopez spoke discourteously to**

§ 87(2)(b)

**Allegation 2F –Discourtesy: Police Officer Alexander Lopez spoke discourteously to**

§ 87(2)(b)

It is undisputed that PO Lopez spoke with § 87(2)(b) and § 87(2)(b) during the course of the stop. § 87(2)(g)

§ 87(2)(b) (Board Review #5) stated that he and his friends kept asking, “What’s going on? There are no guns. What’s all this about?” The officers seemed annoyed, and the officers searching him, PO Lopez, who he described as a heavyset Spanish male in his mid-30s, approximately 5’6” or 5’7” tall with black hair, repeatedly told § 87(2)(b) and § 87(2)(b) to, “Shut the fuck up.”

PO Lopez (Board Review #13) said he did not tell anyone to, “Shut the fuck up,” and did not hear any other officers use profanity.

PO Logatto (Board Review #14) said he did not hear profanity being used.

Lieutenant Poggioli (Board Review #15) stated the males were compliant for the duration of their interaction and the officers did not use any profanity towards them.

P.G. 203-09 states that when engaging with the public officers must be courteous and respectful (Board Review #23).

§ 87(2)(g)

It is therefore recommended that  
**Allegations 2E and 2F be *unsubstantiated*.**

#### **Civilian and Officer CCRB Histories**

- PO Lopez has been a Member of Service for five years and has not been a subject in any previous CCRB complaints.
- PO Logatto has been a Member of Service for six years and has been a subject in one other complaint, totaling one allegation, with no substantiations. § 87(2)(g)
- Lieutenant Poggioli has been a Member of service for 12 years and has been a subject in one other complaint totaling one allegation with no substantiations. § 87(2)(g)
- This is § 87(2)(b)'s first CCRB complaint (Board Review #24).
- This is § 87(2)(b)'s second CCRB complaint. § 87(2)(b)
- This is § 87(2)(b)'s third CCRB complaint. § 87(2)(b)
- This is § 87(2)(b)'s first CCRB complaint (Board Review #27).
- This is § 87(2)(b)'s first CCRB complaint (Board Review #28).

#### **Mediation, Civil and Criminal Histories**

- § 87(2)(b) declined mediation § 87(2)(b)

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]  
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- As of October 20, 2017, a Notice of Claim has not been filed by [§ 87(2)(b)]  
[redacted] or [§ 87(2)(b)] (Board Review #35-39).

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Squad: 12

Investigator: \_\_\_\_\_  
Signature Print Date

Squad Leader: \_\_\_\_\_  
Title/Signature Print Date

Reviewer: \_\_\_\_\_  
Title/Signature Print Date

